United States Shipping Board (0x556)" are abolished, and any unobligated balances in such accounts are covered into the Treasury; and that any claims accruing on and after July 1, 1935, which, but for this section would have been charged to these appropriation titles, shall, upon proper audit, be certified to Congress for appropriation from the general fund of the Treasury, which is authorized.

§ 749. Arbitration, compromise, or settlement of claims

The Secretary of any department of the Government of the United States, or the board of trustees of such corporation, are, and each is, authorized to arbitrate, compromise, or settle any claim in which suit will lie under the provisions of sections 742, 744, and 750 of this Appendix.

(Mar. 9, 1920, ch. 95, § 9, 41 Stat. 527; Aug. 29, 1972, Pub. L. 92-417, § 3, 86 Stat. 656; Aug. 6, 1981, Pub. L. 97-31, § 12(25)(C), 95 Stat. 155.)

References in Text

Such corporation, referred to in text, probably means a corporation mentioned in section 741 of this Appendix.

Amendments

1981—Pub. L. 97-31 struck out reference to the United States Shipping Board.

1972—Pub. L. 92-417 struck out "having control of the possession or operation of any merchant vessel" preceding "are, and each is".

Cross References

Payment of judgment, award, or settlement, see section 748 of this Appendix.

Section Referred to in Other Sections

This section is referred to in section 748 of this Appendix.

§ 750. Recovery for salvage services by vessel or crew

The United States, and the crew of any merchant vessel owned or operated by the United States, or such corporation, shall have the right to collect and sue for salvage services rendered by such vessel and crew, and any moneys recovered therefrom by the United States for its own benefit, and not for the benefit of the crew, shall be covered into the United States Treasury to the credit of the department of the Government of the United States, or of such corporation, having control of the possession or operation of such vessel.

(Mar. 9, 1920, ch. 95, § 10, 41 Stat. 528; Aug. 6, 1981, Pub. L. 97-31, § 12(25)(D), 95 Stat. 155.)

References in Text

Such corporation, referred to in text, probably means a corporation mentioned in section 741 of this Appendix.

Amendments

1981—Pub. L. 97-31 struck out reference to the United States Shipping Board.

Section Referred to in Other Sections

This section is referred to in section 749 of this Appendix.

§ 751. Disposition of moneys recovered by United States

All moneys recovered in any suit brought by the United States on any cause of action arising from, or in connection with, the possession, operation, or ownership of any merchant vessel, or the possession, carriage, or ownership of any cargo, shall be covered into the United States Treasury to the credit of the department of the Government of the United States, or of such aforesaid corporation, having control of the vessel or cargo with respect to which such cause of action arises, for reimbursement of the appropriation, or insurance fund, or other funds, from which the loss, damage, or compensation for which said judgment was recovered has been or will be paid.

(Mar. 9, 1920, ch. 95, § 11, 41 Stat. 528; Aug. 6, 1981, Pub. L. 97-31, § 12(25)(D), 95 Stat. 155.)

References in Text

Such aforesaid corporation, referred to in text, probably means a corporation mentioned in section 741 of this Appendix.

Amendments

1981—Pub. L. 97-31 struck out reference to the United States Shipping Board.

§ 752. Reports as to awards and settlements

The Secretary of any department of the Government of the United States, and the board of trustees of any such aforesaid corporation, shall report to the Congress at each session thereof the arbitration awards or settlements of claims which shall have been agreed to under this chapter since the previous session, and in which the time to appeal shall have expired or have been waived.

(Mar. 9, 1920, ch. 95, § 12, 41 Stat. 528; Aug. 6, 1981, Pub. L. 97-31, § 12(25)(E), 95 Stat. 155.)

References in Text

Such aforesaid corporation, referred to in text, probably means a corporation mentioned in section 741 of this Appendix.

Amendments

1981—Pub. L. 97-31 struck out reference to the United States Shipping Board.

1954—Act Aug. 30, 1954, repealed the provisions requiring the Attorney General to make an annual report to Congress of all suits under this chapter in which final judgment was rendered for or against the United States and the corporations mentioned in section 741 of this Appendix.

CHAPTER 21—DEATH ON THE HIGH SEAS BY WRONGFUL ACT

Sec.
761. Right of action; where and by whom brought.
762. Amount and apportionment of recovery.
763a. Limitations.
764. Rights of action given by laws of foreign countries.
765. Death of plaintiff pending action.
766. Contributory negligence.
767. Exceptions from operation of chapter.
768. Omitted.

§ 761. Right of action; where and by whom brought

Whenever the death of a person shall be caused by wrongful act, neglect, or default occurring on the high seas beyond a marine league from the shore of any State, or the District of Columbia, or the Territories or dependencies of the United States, the personal representative of the decedent may maintain a suit for damages in the district courts of the United States, in admiralty, for the exclusive benefit of the decedent's wife, husband, parent, child, or dependent relative against the vessel, person, or corporation which would have been liable if death had not ensued.

(Mar. 30, 1920, ch. 111, § 1, 41 Stat. 537.)

SHORT TITLE

Act Mar. 30, 1920, ch. 111, which enacted this chapter, is popularly know as the Death on the High Seas Act.

CROSS REFERENCES

Death of plaintiff pending action, see section 765 of this Appendix.

SECTION REFERRED TO IN OTHER SECTIONS

This section is referred to in section 765 of this Appendix.

§ 762. Amount and apportionment of recovery

The recovery in such suit shall be a fair and just compensation for the pecuniary loss sustained by the persons for whose benefit the suit is brought and shall be apportioned among them by the court in proportion to the loss they may severally have suffered by reason of the death of the person by whose representative the suit is brought.

(Mar. 30, 1920, ch. 111, § 2, 41 Stat. 537.)

CROSS REFERENCES

Death of plaintiff pending action, see section 765 of this Appendix.

SECTION REFERRED TO IN OTHER SECTIONS

This section is referred to in section 765 of this Appendix.

§ 763a. Limitations

Unless otherwise specified by law, a suit for recovery of damages for personal injury or death, or both, arising out of a maritime tort, shall not be maintained unless commenced within three years from the date the cause of action accrued.

(Pub. L. 96-382, § 1, Oct. 6, 1980, 94 Stat. 1525.)

CODIFICATION

Section was not enacted as part of act Mar. 30, 1920, known as the Death on the High Seas Act, which comprises this chapter.

§ 764. Rights of action given by laws of foreign countries

Whenever a right of action is granted by the law of any foreign State on account of death by wrongful act, neglect, or default occurring upon the high seas, such right may be maintained in an appropriate action in admiralty in the courts of the United States without abatement in respect to the amount for which recovery is authorized, any statute of the United States to the contrary notwithstanding.

(Mar. 30, 1920, ch. 111, § 4, 41 Stat. 537.)

§ 765. Death of plaintiff pending action

If a person die [1] as the result of such wrongful act, neglect, or default as is mentioned in section 761 of this Appendix during the pendency in a court of admiralty of the United States of a suit to recover damages for personal injuries in respect of such act, neglect, or default, the personal representative of the decedent may be substituted as a party and the suit may proceed as a suit under this chapter for the recovery of the compensation provided in section 762 of this Appendix.

(Mar. 30, 1920, ch. 111, § 5, 41 Stat. 537.)

§ 766. Contributory negligence

In suits under this chapter the fact that the decedent has been guilty of contributory negligence shall not bar recovery, but the court shall take into consideration the degree of negligence attributable to the decedent and reduce the recovery accordingly.

(Mar. 30, 1920, ch. 111, § 6, 41 Stat. 537.)

§ 767. Exceptions from operation of chapter

The provisions of any State statute giving or regulating rights of action or remedies for death shall not be affected by this chapter. Nor shall this chapter apply to the Great Lakes or to any waters within the territorial limits of any State, or to any navigable waters in the Panama Canal Zone.

(Mar. 30, 1920, ch. 111, § 7, 41 Stat. 538.)

REFERENCES IN TEXT

For definition of Canal Zone, referred to in text, see section 3602(b) of Title 22, Foreign Relations and Intercourse.

§ 768. Omitted

CODIFICATION

Section, act Mar. 30, 1920, ch. 111, § 8, 41 Stat. 538, provided that this chapter should not affect suits pending on Mar. 30, 1920.

CHAPTER 22—SUITS IN ADMIRALTY AGAINST UNITED STATES FOR DAMAGES CAUSED BY PUBLIC VESSELS OR FOR TOWAGE OR SALVAGE SERVICES

Sec.
781. Libel in admiralty against or impleader of United States.
782. Venue of suit; application of provisions of chapter 20.
783. Cross libel, set-off, or counterclaim.
784. Subpoenas to officers or members of crews.
785. Suits by nationals of foreign governments.
786. Arbitration, compromise, or settlement.
787. Payment of judgments or settlements.
788. Lien not created against public vessels.
789. Exemptions and limitations of liability.
790. Reports by Attorney General.

[1] So in original. Probably should be "dies".